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Case Number: 25STCV03956 Hearing Date: July 8, 2026 Dept: 224

Delgado v Carolyn Francis Delgado

TENTATIVE RULING

Defendant's Motion to Determine Value and Send Buyout Notice is GRANTED IN PART AND DENIED IN PART without prejudice.

Background

Plaintiff Daniel Delgado filed this complaint on February 11, 2025, against Defendant Carolyn Francis Delgado alleging a cause of action for Partition by Sale of Real Property.

On July 9, 2025, Defendant Carolyn Francis Delgado filed the instant motion to Determine Value and Send Buyout Notice.

On June 24, 2026, Plaintiff Daniel Delgado filed an opposition.

On June 30, 2026, Defendant Carolyn Francis Delgado filed a reply.

Legal Standard

Code of Civil Procedure (CCP) § 874.316 states that:

(a) "[e]xcept as otherwise provided in subdivisions (b) and (c), the court shall determine the fair market value of the property by ordering an appraisal pursuant to subdivision (d)."

(d) "If the court orders an appraisal, the court shall appoint a disinterested real estate appraiser licensed in the State of California to determine the fair market value of the property assuming sole ownership of the fee simple estate. On completion of the appraisal, the appraiser shall file a sworn or verified appraisal with the court."

(f) "If an appraisal is filed with the court pursuant to subdivision (d), the court shall conduct a hearing to determine the fair market value of the property not sooner than 30 days after a copy of the notice of the appraisal is sent to each party under subdivision (e), whether or not an objection to the appraisal is filed under paragraph (3) of subdivision (e). In addition to the court-ordered appraisal, the court may consider any other evidence of value offered by a party."

(g) "After a hearing under subdivision (f), but before considering the merits of the partition action, the court shall determine the fair market value of the property and send notice to the parties of the value."

(CCP § 874.316, subds. (a), (d), (f), (g).)

"The court shall apportion the costs of partition among the parties in proportion to their interests or make such other apportionment as may be equitable." (CCP § 874.040.)

"If any cotenant requested partition by sale, the court shall, after the determination of value under § 874.316, send notice to the parties that any cotenant except a cotenant that requested partition by sale may buy all the interests of the cotenants that requested partition by sale." (CCP § 874.317, subd. (a).) "Not later than 45 days after the notice is sent under subdivision (a), any cotenant except a cotenant that requested partition by sale may give notice to the court that it elects to buy all the interests of the cotenants that requested partition by sale." (CCP § 874.317, subd. (b).) "If the court sends notice to the parties under paragraph (1) or (2) of subdivision (d), the court shall set a date, not sooner than 60 days after the date the notice was sent, by which electing cotenants shall pay their apportioned price into the court." (CCP § 874.317, subd. (e).)

"If the court does not order partition in kind under subdivision (a), the court shall order partition by sale pursuant to Section 874.320 or, if no cotenant requested partition by sale, the court shall dismiss the action." (CCP § 874.318, subd. (b).)

Discussion

Defendant moves for an Order to (1) to appoint an appraiser to determine the fair market value of the real property located at 3629 Beck Ave. Bell, CA 90201 (the "Property"), (2) assign the costs of appraisal to Plaintiff and set a deadline for their payment, (3) set a hearing to determine the fair market value, or alternatively to order the Property to be sold, and (4) send a buyout notice with a deadline for compliance under CCP § 872.720, 872.810, 873.010, 874.316, 874.317, 874.318. (Defendant's Mot; Defendant's Memo.)

Defendant argues that this action is subject to the Partition of Real Property Act ("PRPA") because this action was filed after January 1, 2023, the Property is held in tenancy in common, and there is no agreement between the parties which governs the partition. (Defendant's Memo., 3:19-21; Defendant's Mot.)

Defendant requests that the Court appoint an appraiser to conduct an appraisal of the Subject Property pursuant to CCP § 874.316, subd. (d). (CCP § 874.316, subd. (d).) Defendant asks the Court to enter an order appointing Tom Berge to determine the Subject Property's value, and requiring Plaintiff to pay the appraisal's cost. Finally, Defendant requests that in the event Plaintiff fails to pay the Appraiser's fees within 20 days of this hearing or fails to provide the Appraiser with access to the Property within 30 days of this hearing, that the Court order the Property to be sold under CCP § 874.318. (CCP § 874.318.) (Defendant's Memo; Defendant's Reply.)

In opposition, Plaintiff first argues that Defendant improperly names Tom Berge without any reference to his qualifications. Plaintiff also contends that the PRPA does not allow for a party to choose their appraiser and that instead, CCP § 874.316, subd. (d) directs the Court to "appoint a disinterested real estate appraiser..." (CCP § 874.316, subd. (d).) Plaintiff points out that this concern is heightened as Defendant is a "licensed California real estate agent with approximately twenty-two years of experience, with the professional knowledge and industry relationships to identify and engage an appraiser within her own network." (Plaintiff's Opp., 4:25-28) Plaintiff suggests that the Court instead appoint an appraisal management company ("AMC"). Plaintiff also opposes Defendant's request that Plaintiff pay the full costs for an appraisal. Lastly, Plaintiff opposes

Defendant's request that the Court order the property to be sold if Plaintiff fails to pay her appraiser within twenty (20) days or provide access within thirty (30) days. (Plaintiff's Opp.)

Defendant replies that she has never argued that an appraiser was mandatory. Moreover, Defendant contends that Plaintiff fails to provide evidence regarding Defendant's alleged bias in suggesting Tom Berge, as required by Evid. Code § 500. (Evid. Code § 500.) Defendant opposes Plaintiff's request to appoint an AMC, because of the additional costs to the parties over a traditional appraiser. Lastly, Defendant opposes Plaintiff's request to strike Defendant's 20/30-day deadline, claiming that Defendant is entitled to request a sale of the Property if the PRPA procedures are not complied with. (Defendant's Mot., Defendant's Memo., Defendant's Reply.)

Under the PRPA, the Court finds that it is appropriate to appoint an appraiser under CCP § 874.316, subd. (a) and (d) (CCP § 874.316, subd. (a), (d)). However, due to the parties' deficient filings lacking any relevant evidence, the Court is unable to appoint an appraiser at this time. The Court orders Plaintiff to file supplemental evidence and briefing establishing (1) the cost difference between hiring an AMC as opposed to a traditional appraiser, and (2) evidence in support of the allegations that Tom Berge is a biased appraiser. Additionally, the Court orders Defendant to provide evidence regarding (1) Tom Berge's qualifications to serve as a disinterested appraiser in the matter. The Court will appoint an appraiser after the gaps in evidence have been filled.

Turning to the cost of the appraisal, Defendant requests that Plaintiff cover the entirety of the cost. In ordering the appraisal, the Court follows CCP § 874.040: "the court shall apportion the costs of partition among the parties in proportion to their interests." (CCP § 874.040.) The Court is not persuaded by Defendant's argument that the appraisal only benefits Plaintiff and that therefore, only Plaintiff should bear the costs. Pursuant to CCP § 874.040. The Court denies Defendant's request and orders that the costs of the appraisal be divided by the parties' respective 50% interests and that it be paid from escrow. (CCP § 874.040.)

Finally, Defendant requested that if the Plaintiff fails to pay the Appraiser's fees within 20 days of this hearing or fails to provide the Appraiser with access to the Property within 30 days of this hearing, that the Court order the Property to be sold under CCP § 874.318. (CCP § 874.318.) Plaintiff raises that nothing in the PRPA authorizes conditioning a cotenant's substantive rights on that cotenant's payment of another party's costs. CCP § 874.316 through 874.318 contain no such penalty. Plaintiff further contends that Defendant's demand is self-defeating because an order selling the Property is the very relief Plaintiff requested in his complaint. Defendant contends that under CCP § 128, subd. (a)(4), the Court has the power to "compel obedience to its judgment, orders, and process..." (CCP § 128, subd. (a)(4).) The Court finds that Defendant's position is premature, as no financial or physical obstruction by Plaintiff has occurred. Defendant can move for a court order at a later time in the event that Plaintiff fails to comply with his obligations to pay the appraiser or provide the appraiser with physical access to the Property. The Court denies Defendant's requested 20/30-day deadline. (Plaintiff's Opp., Defendant's Mot., Defendant's Memo., Defendant's Reply.)

Accordingly, the Court orders Plaintiff to provide evidence regarding (1) the cost of hiring an AMC as opposed to a traditional appraiser, and (2) the allegations regarding Defendant's alleged bias if Plaintiff wishes to oppose the appointment of Tom Berge. The Court also orders Defendant to supplement evidence regarding (1) Tom Berge's qualifications to serve as a disinterested appraiser in the matter. The Court will appoint an appraiser after the gaps in evidence have been filled. The Court also orders that the costs of the appraisal be split by the parties per their respective 50% interests in the Subject Property and paid from escrow. (CCP § 874.040.) Once the appraisal is completed and filed with the Court, the Court will proceed as required under CCP § 874.316, subd. (e), (f), (g). (CCP § 874.316 subd. (e), (f), (g).) The Court otherwise DENIES the motion without prejudice.

To allow the evidence to be filed by the parties, the Court will continue the hearing set for July 8th, 2026, regarding the instant motion to September 21st, 2026, at 9:00am in Dept. 224. Supplemental filings and evidence are due no later than September 10, 2026.

Based on the foregoing, Defendant's Motion to Determine Value and Send Buyout Notice is GRANTED IN PART AND DENIED IN PART without prejudice.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.